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No Surrender: The Land Remains Indigenous by Sheldon Krasowski

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No Surrender

The Land Remains Indigenous

By Sheldon Krasowski

Regina: University of Regina Press, 2019. 392 pages.
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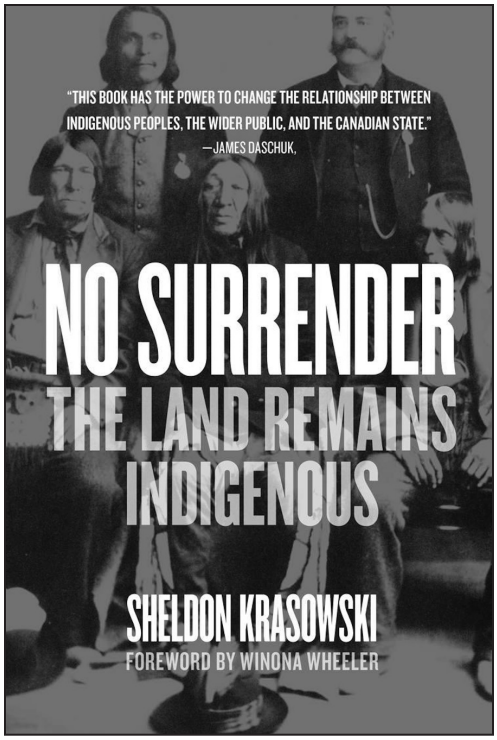

In *No Surrender: The Land Remains Indigenous,* historian Sheldon Krasowski adds to the dialogue on treaty negotiations by locating a common negotiating strategy on the part of the Crown through which colonial agents downplayed land surrender in Treaties One to Seven in what is now known as Canada. Although the text focuses primarily on prairie treaties, Krasowski's key teachings apply trans-provincially. First, Indigenous leaders never agreed to surrender the land. Second, treaties should be studied as an interrelated whole or "treaty bundle," rather than as individual agreements because the bundle defines the relationship between Indigenous peoples and newcomers. Krasowski makes clear that Indigenous Elders (who taught him) have been making these arguments for years. Krasowski also suggests that the bundle approach prompts readers (and future treaty historians) to recognize the integral role of ceremony at treaty gatherings.[1]

Krasowski argues against the cultural misunderstanding thesis put forward by George Stanley in 1960 which implies Indigenous people were incompetent negotiators and that Crown negotiators were acting benevolently. Stanley's 1960 work continues to shape popular misunderstandings that cultural differences led to a misunderstanding of the treaty terms. Through the lens of the treaty bundle and eyewitness accounts, Krasowski dismantles this perspective. The treaty bundle lens reveals that Canada's treaty commissioners had a common negotiating strategy which only discussed the benefits of the treaties and not the liabilities, including the surrender clause. Krasowski bases this finding on a close reading of news reports, colonial correspondence, and original manuscripts (in addition to Elder testimony). Colonial officials also chose translators in favour of treaty-making. These points showcase that Crown negotiators never clearly expressed their intent to own Indigenous land. Krasowski demonstrates, in fact, that Indigenous Chiefs were expert negotiators who agreed to share their land with settlers in exchange for treaty benefits such as annuities and education. They did not agree to surrender it because cession was never discussed. Despite pressure from Ottawa to

decrease treaty benefits, the treaty bundle demonstrates that the goods and services secured by First Nations increased with each successive treaty, suggesting cooperation and information exchanges between First Nations. According to Krasowski, Indigenous leadership took steps to prepare for negotiations with the Crown by gathering information thus challenging Stanley's thesis.

Those who are interested in learning more about the Numbered Treaties in the Ontario context would benefit from chapters one and two which focus on negotiations at Fort Frances in 1870-71 and Lake of the Woods in 1873. Krasowski includes a discussion on the controversy of outside promises made during oral negotiations that were not added to the treaty texts produced by colonial agents. These examples continue to challenge Stanley's thesis, showing us that Crown negotiators caused upset by failing to act transparently. Krasowski could have included more petitions to the Crown over broken treaty promises in the first decade after signing to see what terms of the treaties were violated from First Nations' perspectives.

Following his treaty bundle approach, Krasowski identifies the importance of previous treaty making periods for the Numbered Treaties, such as the Upper Canada treaties negotiated from 1763 to 1850 in present day southern Ontario. These treaties provided Indigenous land to settlers and marked a shift away from the previous Peace and Friendship treaties which focused on ending hostilities and securing commercial compacts. During the Upper Canada treaties period, commissioners adhered to Indigenous protocols for treaty making, as demonstrated through their speeches which focused on kinship and the Royal Proclamation of 1763. Indigenous Chiefs had agency during negotiations and employed negotiation tactics that were also used during the Numbered Treaties. These treaties, particularly the Robinson Treaties, created an ideal template for the Numbered Treaties negotiations because they described the clauses in general terms, selected reserve lands, and formalized annuity payments. Researchers interested in the treaties in Ontario might be interested in looking at this complete bundle in future works.

Krasowski's work effectively incorporates Indigenous oral histories and research methodologies by viewing the treaties as sacred undertakings confirmed through ceremony. By doing so, he reads the conventional written texts, such as the treaty texts and Alexander Morris's *Treaties of Canada with the Indians,* with a more critical eye. By so doing, he more broadly challenges mainstream stereotypes that oral history is inherently invalid or that it conflicts with text-based sources. Rather, he demonstrates that oral history and text-based sources complement each other and are necessary to understand treaty negotiations in what is now known as Canada.[2] *No Surrender* would be an appropriate addition to undergraduate history courses covering treaty-making because of Krasowski's treaty bundle methodology and the amount of primary material he uses. In the graduate seminar context, it would pair well with Michael Asch's *On Being Here to Stay: Aboriginal and Treaty Rights in Canada* and John Borrow and Michael Coyle's *The Right Relationship* because of their focus on rights and relationships in treaty-making. Heidi Bohaker, Brittany Luby, and Alison Norman have spoken publicly about the masculinist nature of treaty work to date and Krasowski's work reinforces the need to

explore the role of women in treaty negotiations and gatherings. It also leaves me wondering about the role of women and two-spirited people in these moments and related ceremonies, highlighting possibilities for future research.

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[1] Due to the sacred nature of ceremony, Krasowski keeps some of the interworking of ceremony private. Ceremonial teachings are often passed on through relationships with knowledge keepers and Elders.

[2] For other examples of scholars who examine stereotypes around oral history see: Bruce Granville Miller, *Oral History on Trial: Recognizing Aboriginal Narratives in the Courts* UBC Press, 2011 and Arthur J. Ray, "History Wars" and Treaty Rights in Canada, in The Power of Promise: Rethinking Indian Treaties in the Pacific Northwest., ed A. Harmon, University of Washington Press, 2008.